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Case Number: 24NWCV02245 Hearing Date: August 27, 2026 Dept: L

Plaintiffs Hector Recinos and Cristina Jimenes' Motion
for Prejudgment Interest is GRANTED, in part.

Plaintiffs are entitled to \$3,228.03 in prejudgment
interest.

Plaintiffs to give notice.

Background

This is a lemon law action
regarding a 2020 Ford Explorer. On July 23, 2024, Plaintiffs Hector Recinos and
Cristina Jimenes ("Plaintiffs") filed this action against Defendant Ford Motor
Company ("Defendant") and Does 1 to 10.

On September 4, 2024, Defendant
filed the Answer.

The case came on for jury trial.

The returned a special verdict awarding Plaintiffs \$44,139.38 on their cause of
action for breach of express warranty and \$10,000 on their cause of action for
breach of implied warranty. (4/15/26 Special Verdict.)

Plaintiffs now move for
prejudgment interest pursuant to Civil Code section 3287.

Request for Judicial Notice

Plaintiffs' Request for Judicial

Notice of the May 19, 2026 Order Granting Plaintiffs' Motion for Prejudgment Interest in Asatryan v. BMW of North America, LLC, Los Angeles Superior Court Case No. 24VECV04937, is granted, but only for its existence and not the truth of the matters asserted.

Legal Standard

Plaintiffs seek an award of prejudgment interest pursuant to Civil Code section 3287(a), or, alternatively, pursuant to section 3287(b) :ç

(a)

Every person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in him upon a particular day, is entitled also to recover interest thereon from that day, except during such time as the debtor is prevented by law, or by the act of the creditor from paying the debt. This section is applicable to recovery of damages and interest from any such debtor, including the state or any county, city, city and county, municipal corporation, public district, public agency, or any political subdivision of the state.ç

(b)

Every person who is entitled under any judgment to receive damages based upon a cause of action in contract where the claim was unliquidated, may also recover interest thereon from a date prior to the entry of judgment as the court may, in its discretion, fix, but in no event earlier than the date the action was filed.

(Civ. Code § 3287(a)-(b), bold emphasis added.)ç

Discussion

Plaintiffs move for prejudgment interest in the amount of \$7,642.76, calculated at the statutory rate of ten percent per annum on the jury's award of \$44,139.38 on the breach of express warranty cause of action, from July 23, 2024, the date the Complaint was filed, through April 16, 2026, the date of the jury's verdict. (Zakharian Decl., ¶ 15.)

Plaintiffs first argue that they are entitled to prejudgment interest pursuant to Civil Code section 3287, subdivision (a) because the jury's award was certain, or at minimum capable of being made certain by calculation before trial. Specifically, the \$44,139.38 restitution damages award was not speculative, but was determined using financial records and statutory mileage offset calculations. Defendant had access to such documents, and therefore, it has all information necessary to calculate the restitution amount before trial. (Zakharian Decl., ¶¶ 6–7.0

Alternatively, Plaintiffs seek prejudgment interest under the discretionary provision of Civil Code section 3287, subdivision (b). Equitable factors weigh in favor of awarding such interest, including that 1) Plaintiffs waited from July 23, 2024 to April 16, 2026 to obtain compensation through jury verdict, 2) Defendant had notice of its potential liability through multiple repair visits and warranty claims, 3) an award of prejudgment interest would not create a windfall for either party, and 4) Defendant's conduct in serving a section 998 offer prior to completion of discovery supports the award of interest.

In opposition, Defendant argues that Plaintiffs are not entitled to prejudgment interest because Plaintiffs' damages were not certain or capable of being made certain until a judicial determination was made based on conflicting evidence. In support of this contention, Defendant cites *Duale v. Mercedes Benz USA, LLC*, a 2007 Song-Beverly case in which the Court of Appeal concluded that the determination of damages to the plaintiff from the alleged defects in the vehicle at issue were in dispute and could not be resolved except by verdict. (*Duale v. Mercedes Benz USA, LLC* ("Duale") (2007) 148 Cal.App.4th 718, 729.) Defendants argue that *Duale* is applicable here where liability and mileage-offset issues were in dispute. Defendant argues that the closing arguments at trial highlights why the damages were not reasonably calculable. Plaintiffs' counsel total requested damages amount was over \$240,000.00 (including buyback price, incidental damages, and civil penalties). (Abraham Decl., ¶ 4., Exh B.) Defendant argued that the total damages incurred was \$39,459.02 (including buyback price, incidental damages, and no civil penalties). (Abraham Decl., ¶ 5, Exh. C.) Plaintiffs also provide no explanation as to why their right to recover vested on the date that they filed the Complaint.

Further, Defendant argues that

Plaintiffs are not entitled to prejudgment interest under Civil Code section 3287, subdivision (b). Equitable factors weigh against granting prejudgment interest. On March 21, 2025, Defendant presented a 998 offer in the amount \$47,971.75, and Plaintiffs rejected such offer. (Abraham Decl., ¶¶ 3-4, Exhs. A.) The jury returned a verdict in the amount of \$44,139.38, less than the 998 offer. Thus, by rejecting the offer, Plaintiffs unnecessarily extended the time between the alleged breach and the judgment. Further, the degree of uncertainty of damages was high, and Plaintiffs would receive a windfall if they are awarded prejudgment interest.

In reply, Plaintiffs argue that the Song-Beverly restitution calculation is formula driven—i.e., restitution consists of “amounts paid and payable under the purchase contract, plus recoverable incidental and consequential damages, less a mileage offset computed.” (Reply., 2:19-21.) Further, the fact that Defendant calculated a total amount and presented it to the jury is evidence that it had the material needed to make the calculation. Plaintiffs argue that the discrepancy between Defendant’s calculation of \$39,459.02 and the jury’s calculation of \$44,139.38 reflects a disagreement about inputs, not the lack of means of calculation. Further, Plaintiffs’ requested amount of over \$240,000.00 in the closing arguments included civil penalties. Plaintiffs do not seek interest on any other amount than the \$44,139.38 restitution award. Further, the Duale case was decided on its specific facts that are not present here. In that case, the recovery “turned on which of many alleged defects constituted the qualifying nonconformity and on the mileage at the first qualifying presentation for repair.” (Reply, 3:13-14.)

Whether a defendant is liable for prejudgment interest under Civil Code section 3287, subdivision (a) depends on whether the “defendant actually know[s] the amount owed or from reasonably available information could the defendant have computed that amount.” (Duale, supra, 148 Cal.App.4th at p. 729.) “The statute . . . does not authorize prejudgment interest where the amount of damage, as opposed to the determination of liability, depends upon a judicial determination based upon conflicting evidence, and it is not ascertainable from truthful data supplied by the claimant to his debtor. Thus, where the amount of damages cannot be resolved except by verdict or judgment, prejudgment interest is not appropriate.” (Ibid., citations, quotations, and emphasis omitted.)

In determining whether a claimant is entitled to prejudgment interest under Civil Code section 3287, subdivision (a), the key factor is whether the defendant knew the amount of damages owed or could have computed that amount from reasonably available information. (Duale, supra, 148 Cal.App.4th at p. 729.) Uncertainty regarding liability does not preclude prejudgment interest in a civil action. (Ibid.) The certainty required under Civil Code section 3287, subdivision (a) is not lost when the existence of liability turns on disputed facts, but rather only when the amount of damages in in dispute. (Ibid.)

The Court finds that Duale applies here where damages were only capable by calculation via jury verdict. This is not a situation in which Plaintiffs are only seeking prejudgment interest on damages based purely on the purchase price of the Subject Vehicle. Rather, the \$44,139.38 damages award included the amount actually paid, plus incidental and consequential damages, minus the mileage offset. Plaintiffs and Defendant proffered different amounts for such damages to the jury, making the damages amount clearly disputed. (See Abraham Decl., ¶¶ 5-6, Exh. C.) In other words, the Court finds that the incidental damages, consequential damages, and the civil penalty damages were in dispute and were only made certain by jury verdict.

Thus, the Court denies Plaintiffs' request for mandatory prejudgment interest.

However, in balancing the equities, the Court finds that Plaintiffs are entitled to discretionary prejudgment interest pursuant to Civil Code section 3287, subdivision (b) at the rate of 10% per annum dating from July 23, 2025, one year after Plaintiffs filed the Complaint. In exercising this discretion, the court finds the ruling in Carmel Development Co., Inc. v. Anderson ("Carmel") (2020) 48 Cal.App.5th 492 instructive. The Carmel court upheld a trial court's award of discretionary prejudgment interest where the time for accrual was set one year after filing, even though section 3287, subdivision (b) authorizes interest from the

date a complaint is filed. (Id. at p. 525.) The Carmel court held that it was proper for the trial court to consider the time and money spent by the moving party during the litigation's pendency. (Ibid.) The Carmel court further found that it was proper for the trial court to weigh this consideration against the fact that the amount of damages was not instantly discoverable upon filing the complaint. (Ibid.)

Here, the Complaint's filing did not make Plaintiffs damages certain, as liability was heavily disputed and Plaintiffs prayed for damages "according to proof" in the Complaint. However, after one year into the litigation, the discovery process should have provided sufficient information for both parties to recognize that Defendant owed some amount. For example, Defendant's presentation of a 998 offer (expressly including prejudgment interest) on March 21, 2025 indicates that Defendant recognized some liability at that time. (Abraham Decl., ¶¶ 3, Exh. A.) Plaintiffs reasonably rejected the offer as Plaintiffs did not have discovery responses from Defendant to evaluate it. (Zakharian Decl., ¶¶ 11-13.) Defendant did not provide such discovery until around July 2025 and later. (Supp. Zakharian Decl., ¶¶ 7-9.) The Court finds that awarding prejudgment interest from July 23, 2025 would prevent Plaintiffs from receiving a windfall while also ensuring they receive fair compensation for the time and effort spent pursuing their claim.

Accordingly, Plaintiffs' Motion for Prejudgment Interest is granted, in part, pursuant to Civil Code section 3287, subdivision (b). Plaintiffs are entitled to prejudgment interest from Defendant in the amount of \$3,228.03 (10% of \$44,139.38 divided by 365 days = \$12.09 multiplied by 267 days (7/23/2025 to 4/16/2026) = \$3,228.03.)